SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 10643 of 2020 (YEAR: 2020)

CORAM: R.F. NARIMAN, SURYA KANT, V. RAMASUBRAMANIAN

Committee of Creditors of Essar Steel India Ltd.
... Appellant(s) / Petitioner(s)
Versus
Satish Kumar Gupta
... Respondent(s)

Acts Referred:	Insolvency and Bankruptcy Code, 2016
Sections:	Section 30 IBC, Section 31 IBC

JUDICIAL HEADNOTE & SUMMARY

Reiterated primacy of commercial wisdom of the Committee of Creditors, limiting NCLT/NCLAT jurisdiction to procedural review without substituting business judgment.

RATIO DECIDENDI

The Court held that: Reiterated primacy of commercial wisdom of the Committee of Creditors, limiting NCLT/NCLAT jurisdiction to procedural review without substituting business judgment. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Committee of Creditors of Essar Steel India Ltd. v. Satish Kumar Gupta (Civil Appeal No. 10643 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Insolvency and Bankruptcy Code, 2016, particularly Section 30 IBC, Section 31 IBC. Reiterated primacy of commercial wisdom of the Committee of Creditors, limiting NCLT/NCLAT jurisdiction to procedural review without substituting business judgment.

OPERATIVE ORDER

ORDER: Decided